

HOUSE SUBSTITUTE FOR
SENATE BILL NO. 595

A bill to amend 2022 PA 81, entitled
"Michigan-Indiana state line remonumentation act,"
by amending sections 5, 7, 11, and 13 (MCL 54.315, 54.317, 54.321,
and 54.323); and to repeal acts and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5. (1) The Michigan-Indiana state line commission is
2 established in the department of licensing and regulatory affairs.

3 (2) The commission shall consist of 5 surveyors licensed in
4 this state, 1 of whom is a resident of **or does surveying work or**
5 **operates as a surveyor in** each of the following counties:

6 (a) Berrien County.

7 (b) Cass County.

8 (c) St. Joseph County.

1 (d) Branch County.

2 (e) Hillsdale County.

3 (3) The governor shall appoint members of the commission, by
4 and with the advice and consent of the senate. The governor shall
5 consider for appointment individuals previously appointed to the
6 Indiana-Michigan boundary line commission pursuant to former 2010
7 PA 259.

8 (4) The term of a member of the commission is 2 years or until
9 a successor is appointed, whichever is later.

10 (5) If a vacancy occurs on the commission, the governor,
11 subject to subsection (3), shall appoint an individual to fill the
12 vacancy for the balance of the term.

13 (6) The governor may remove a member of the commission for
14 incompetence, dereliction of duty, malfeasance, misfeasance, or
15 nonfeasance in office, or any other good cause.

16 (7) The first meeting of the commission shall be called by a
17 majority of the members of the commission. The first meeting shall
18 be held not later than September 15, 2022. At the first meeting,
19 the commission shall elect from among its members a chairperson and
20 other officers as it considers necessary or appropriate. After the
21 first meeting, the commission shall meet ~~at least~~ **not less than**
22 quarterly, or more frequently at the call of the chairperson or if
23 requested by 3 or more members.

24 (8) A majority of the members of the commission constitute a
25 quorum for transacting business. A vote in favor by a majority of
26 the members serving is required for any action of the commission.

27 (9) The commission shall conduct its business in compliance
28 with the open meetings act, 1976 PA 267, MCL 15.261 to 15.275.

29 (10) A writing that is prepared, owned, used, possessed, or

1 retained by the commission in performing an official function is
2 subject to the freedom of information act, 1976 PA 442, MCL 15.231
3 to 15.246.

4 (11) A member of the commission is not entitled to
5 compensation for service on the commission but may be reimbursed
6 for actual and necessary expenses incurred in serving.

7 Sec. 7. (1) Subject to subsection (2), the commission shall do
8 all of the following:

9 (a) Administer a survey and remonumentation of the Michigan-
10 Indiana state line **or any part of the line.**

11 (b) Recover or reestablish monuments at the mileposts and
12 intermediate monument control points of the Michigan-Indiana state
13 line **or any part of the line** as established in the 1827 federal
14 survey that defined that line **or part of the line.** The commission
15 also shall recover or reestablish monuments at the posts originally
16 set at or near the shores of lakes and large rivers of the
17 Michigan-Indiana state line **or any part of the line** as established
18 in the 1827 federal survey, or witness corners for set posts. The
19 commission shall review the survey upon completion of each
20 milepost.

21 (c) Compile appropriate records and documents verifying the
22 location of the mileposts and submit those records and documents to
23 the respective county peer review groups.

24 (d) Resolve any differences revealed by the survey between
25 record documents and recovered evidence regarding the location of
26 mileposts defining the Michigan-Indiana state line **or any part of**
27 **the line.**

28 (e) Provide regular updates to the department's office of land
29 survey and remonumentation.

(2) The director of the department's office of land survey and remonumentation shall keep the state survey and remonumentation commission created under section 3 of the state survey and remonumentation act, 1990 PA 345, MCL 54.263, apprised of the Michigan-Indiana state line commission's progress in discharging its duties under subsection (1).

(3) The commission shall not replace lost corner positions if the state of Indiana does not participate in the survey and remonumentation project as authorized by Indiana law.

(4) To accomplish the purposes of this act, the commission or its representative may meet and collaborate with a similar commission established by the state of Indiana or that commission's representative.

Sec. 11. (1) The commission shall procure professional surveying services **for the purposes of this act** through negotiated contracts **or grants to the county remonumentation programs in counties adjacent to the Michigan-Indiana state line.**

(2) A county receiving grant funds under subsection (1) may provide the professional surveying services or procure professional surveying services through negotiated contracts.

(3) The commission **or a county** shall award contracts only to persons incorporated in this state or with a principal place of business in this state.

(4) A county that receives grant funds under subsection (1) shall not commingle the funds with grant funds under the state survey and remonumentation act, 1990 PA 345, MCL 54.261 to 54.279.

Sec. 13. This act is repealed effective January 1, ~~2026~~**2030**.